Data Sharing Agreement

between

London Borough Councils:
(for Services summarised in SCHEDULE 3.)

and

Maternity, Newborn Screening and Developmental Check providers
School Aged Vaccination Service providers
General Practice providers and others delivering child health services

Date: 16th February 2023

Version: 10.1

CONTENTS PAGE

GUIDANCE NOTE 3
CONTRACT SHEET 8
PARTIES 8
BACKGROUND 8
SIGNATURE PAGE 9
1 DEFINITIONS 10
2 SUPPLY OF DATA 12
3 DATA SHARING 12
4 ACCESS TO THE SOFTWARE 13
5 DATA PROCESSING 14
6 CHIS HUB SERVICE PROVIDERS' EMPLOYEES 17
7 TERM 17
8 LIMITATION OF LIABILITY 18
9 CONFIDENTIALITY 18
10 GENERAL TERMS 19
SCHEDULE 1 - DATA SUPPLY AGREEMENT 21
SCHEDULE 2 - DATA SHARING AGREEMENT 23
SCHEDULE 3 - DATA ACCESS AGREEMENT 26
APPENDIX A - DATA PROCESSING CONTRACT 29

GUIDANCE NOTE

Introduction

This guidance note is intended to provide your Organisation with an explanation on the status and remit of the Child Health Information Service (CHIS) for London and the London-wide CHIS Platform (together the "**Service**").

The Secretary of State delegates a number of his/her public health functions to NHS England. The public health functions agreement 2017 – 2018 enables NHS England to commission certain public health services which will drive improvements in population health, and this agreement sets out the service specifications which are to be commissioned in order to satisfy those public health functions. One such service is the CHIS, and so it is commissioned by NHS England in order to discharge part of their public health duties. The CHIS initiative follows a tender process by NHS England (London) which resulted in the appointment of three service providers (referenced as "**CHIS Hub Service Providers**") on a 5-year (plus 2 year) contract from 1st April 2017 to serve London subject to commissioner contract extension.

A single London-wide CHIS database has replaced the 27 former CHIS provider databases. The following CHIS Hub Service Providers cover the capital:

- InHealth Intelligence Ltd (IHI) delivers the North West London CHIS Hub service and the South East London CHIS Hub service
- North East London NHS Foundation Trust (NELFT) delivers the North East London CHIS Hub service, and
- Your Healthcare CIC (Your Healthcare) delivers the South West London CHIS Hub service.

This guidance note introduces the data supply, data sharing and data access agreements (collectively termed the Data Sharing Agreement or the "**Agreement**"). This document confirms how the child health record formed from the supply of data from your organisation and other data controllers, for example, Maternity, Newborn Screening and Developmental check providers, and School Aged Vaccination Service providers, and General Practice, etc. will be made available to authorised organisations to support child health services (See Schedule 2 for details). This is a crucial aspect of public health.

The overarching Data Sharing Framework should be reviewed prior to this Data Sharing Agreement and both should be signed. This Agreement (the "**Agreement**") confirms the data to be shared by your organisation with the Service and which organisations will access this data (See Schedule 1 for details). It also confirms your Organisation's access to the child health records stored within the London-wide CHIS and replicated onto the London-wide CHIS Platform. The Platform will provide on-line access to the child health record for your organisation and facilitate messaging between system. Another component of the agreement is a "**Data Processing Contract**" between your organisation as the Data Controller and the CHIS Provider as the Data Processor.

All organisations providing Personal Data to the Service will be "**Data Controllers**". The CHIS Providers will ensure that the level of access agreed within this document and similar agreements are reflected within the information systems and interfaces established to facilitate appropriate sharing of child health records.

Your organisation along with other organisations providing Personal Data to the CHIS will be able to access your children's records in support of direct patient care. Once in agreed form this Agreement will support the Service to meet its strategic objectives namely to "Know where every child is" and "How well they are" through the modernisation of Child Health Information Systems and their new focus on collecting, collating, analysing and reporting.

Benefits of the approach include:

- Improving the efficiency of existing data flows, reduce administrative burden (for example, by removing manual data entry and return outcomes to CHIS) and reduce the timescales for record updates.
- Identifying data quality weaknesses and improving the quality of clinical data recording through the provision/review of data entry templates and data quality reports.
- Enabling an improvement of performance in child health services through a more proactive and timely failsafe process.

Supported by this Agreement, the organisations that may access the childhood records (at various levels) are detailed in SCHEDULE 2 of the Agreement. An Information Governance (IG) group has been formed from the provider organisations who will share information with the Service (Local Authority representatives have been sought and are members of the group); they will approve access to the Service noting the restrictions reflected in SCHEDULE 2 and access only to those child health records that are appropriate to the organisation concerned.

Governance

NHS England have reviewed these proposed arrangements to confirm their appropriateness. It is, however, for each organisation to confirm they agree to participate in this initiative by entering into the Agreement. As a Data Controller of the personal data that you process (alongside other providers of child health services, who are data controllers in respect of the personal data which they process), your organisation confirms in line with SCHEDULE 2 the organisations that may access the patient data provided to the CHIS.

Similarly, this Agreement supports your Organisation to access the patient data hosted in the CHIS from other organisations, in line with SCHEDULE 3.

The CHIS Hub Service Providers are Data Processors, acting under the contractual arrangement established via its contract for services with NHS England. It will arrange for processing/sharing data as detailed within this Agreement and similar Agreements. These controls are designed to facilitate the legitimate sharing of child health data (including relevant maternal data) it receives from General Practice and others health and social care organisations.

Legal Basis for Processing and Sharing

The legal basis – the processing and sharing of data with the Service is necessary for medical purposes and is being initiated by your Organisation – the "**Participant**". This is in the context of the CHIS Hub Service Providers being contracted by NHS England, under Section 7A of the National Health Service Act 2006. This agreement focuses on achieving positive health outcomes for the population and reducing health inequalities through the provision of the CHIS.

The CHIS Hub Service Providers will ensure they only processes data as reflected by this and

similar Agreements, and in accordance with the Data Protection Act 2018 ("DPA 2018") which supplements the General Data Protection Regulation ("GDPR").

Personal data must be processed lawfully, fairly, and transparently. There must be a lawful basis for processing under Article 6 of GDPR. In addition, as this processing involves special category personal data (i.e. health data), then there must also be a condition for processing under Article 9 of GDPR.

Organisations (who are the Data Controllers) can rely on the following Articles (under GDPR) for the provision of sharing of data with the CHIS service:

- Article 6(1)(c) -processing is necessary for compliance with a legal obligation to which the controller is subject and/or
- Article 6(1)(e) -processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller.

Moving onto the additional basis for processing required by special categories of personal data (please note no special categories data is required to be provided from borough councils), provision of care and treatment can rely upon:

- Article 9(2)(h) -processing is necessary for the purposes of preventive or occupational medicine, for the assessment of the working capacity of the employee, medical diagnosis, the provision of health or social care or treatment or the management of health or social care systems and services on the basis of Union or Member State law or pursuant to contract with a health professional.

The sharing of patient identifiable data (PID) will only take place with the Data Controllers who participate in the Service, however other organisations are able to access patient level, but truly anonymised data and Aggregate Only data (as detailed in SCHEDULE 2).

Under the DPA 2018 / GDPR, Data Controllers are expected to be much more transparent with patients about how their data will be processed. For the reasons outlined above, you will not need patient consent to share and access information through the CHIS. However, your Privacy Notice should explain that data will be shared with the CHIS.

In addition to the requirements of the data protection legislation, any sharing of personal data must also take place in accordance with the common law duty of confidentiality. The duty does not require consent from a patient where the proposed use of their data is either for individual care or in the public interest (which it is here as it directly benefits patient and public health). Good practice suggests that although consent is not required, patients should be told how their data will be used and this should be set out in your Privacy Notice (as referenced in the previous paragraph). This is a matter for all Data Controllers to address themselves.

These flows of patient data from your Organisation to the CHIS Hub Service Providers have a legal basis and this represents “business as usual”. The processing and sharing of data with other NHS Organisations is for medical purposes and is being initiated by your Organisation and is in alignment with the legal obligations to share patient information for the purposes of direct patient care, pursuant to section 251B of the Health and Social Care Act 2012.

The sharing of data in support of care is supported by the Children Act 1989.

The flow of patient identifiable data concerning children aged 0-19 inclusive between the Participant and the CHIS occurs presently and is an established information flow in support of the Healthy Child Programme. These existing flows of patient data are recognised matters of

public health.

These flows of patient data from organisations involved in the care of children to the London CHIS Hub Service Providers have a legal basis and this represents "business as usual".

Some aggregate only data (numbers and percentages only) and anonymised data will be shared with NHS England as part of their management of the service and for invoice validation. Whilst the DPA 2018/GDPR and Health & Social Care Act 2006 are concerned with the appropriateness of sharing patient identifiable data, anonymised or aggregate data are not subject to these Acts, provided that the patients cannot be identified from the data.

How the data export works

There are a range of solutions being delivered by the Service; the existing e-mail-based communication methods with CSV file-based data sharing arrangements will over time be replaced by modern and secure messaging e.g. HL7 and FHIR or using secure FTP. Investments are being made to modernise the information flows in support of this data sharing.

As part of the implementation of each new method of data provision a Data Protection Impact Assessment (DPIA) will be produced and risks assessed and mitigated.

Security Arrangements

A key issue for all concerned is ensuring the security of patient data. The Agreement (along with this Guidance Note) has been reviewed by NHS England.

The London-wide CHIS Hub system, under formal contractual arrangements, will be provided by System C Healthcare Ltd and is known as CarePlus, it is browser based and makes use of NHS smart card access controls.

The London CHIS Hub Service Providers are all ISO27001:2013 Information Security Management System certified and undergo regular internal and external audits to ensure full compliance with data security regulations. The London CHIS Hub Service Providers will comply with the Department of Health's Information Security Management: NHS Code of Practice (2007) and any specific procedures established by the London-wide CHIS IG Sub-Group on behalf of all participants in respect of information governance, security and confidentiality obligations, as made available to the applicable participants from time to time.

The obligations imposed under this Agreement also apply to any agreed extensions to the scope of data to be hosted.

Information Governance Arrangements

Another key issue is that of Information Governance in general and specifically compliance with the various Acts and NHS best practice associated with sharing and processing data.

Strengthened by the GDPR requirements and DPA 2018, it is the Organisation's responsibility to be transparent about how patient data is being used and who it is being shared with. The Poster assists with meeting the Privacy Notice Arrangements in support of compliance with the DPA 2018. We recommend that your Privacy Notice(s) reflect the information sharing arrangements with the London-wide CHIS which will take place under this Agreement.

Confidentiality Arrangements

The Agreement confirms who may access patient data, for what purpose access is required and which specific level of access will be granted (for example, Aggregate Only (numbers and percentages), Patient Level but Anonymised or Patient Identifiable Data ("**PID**")). Please refer to SCHEDULE 3.

Only the parties identified in SCHEDULE 2 of the Agreement shall have access to the patient's data exported from your organisation.

Security Incidents:

Any actual or perceived security incidents will be handled in line with the provisions of the Agreement and in line with NHS Digital's Guide to the Notification of Data Security and Protection Incidents.

Who to contact for more information:

If you have any specific questions around the Agreement, please feel free to contact the relevant London CHIS Hub Service Provider:

For InHealth Intelligence Ltd (serving **North West London** and **South East London**) Write to Mr Michael Pennington, Data Protection Officer, InHealth Intelligence Ltd, Unity House, Road 5, Winsford Industrial Estate, Winsford, Cheshire, CW7 3RB Email: dpo@health-intelligence.com Telephone HI's Support Desk: 01270 527 373 or Main Line: 01270 765124
For North East London NHS Foundation Trust (serving **North East London**) Write to Mr Robert Paley, Head of Information Governance & Information Security and Deputy Caldicott Guardian (DPO) Maggie Lilly Suite, Goodmayes Hospital, Barley Lane, Goodmayes, Essex, IG3 8XJ Email: Robert.Paley@nelft.nhs.uk Telephone 0300 555 1201 Ext [redacted]
For Your Healthcare CIC (serving **South West London**) Write to Mr Nishant Bhardwaj, Data Protection Officer, Your Healthcare CIC, Hollyfield House, 22 Hollyfield Road, Surbiton, Surrey, KT5 9AL Email – dpo@yourhealthcare.org Telephone 0208 339 8012

Please send your signed agreement to the relevant CHIS Hub Service Provider, detailed above.

DATA SHARING AGREEMENT

(comprising a Data Supply Agreement, Data Processing Agreement & Data Access Agreement)

CONTRACT SHEET

PARTIES

- InHealth Intelligence Ltd (trading as InHealth Intelligence and being a member of the InHealth Group) a company incorporated in England with company number 03257228 whose registered office is at Beechwood Hall, Kingsmead Road, High Wycombe, England, HP11 1JL ("**HI**");
- North East London NHS Foundation Trust, operating from CEME Centre, Marsh Way, Rainham, RM13 8EU ("**NELFT**") together the ("**London CHIS Hub Service Providers** ");
- Your Healthcare CIC a company incorporated in England with company number 06762290 whose registered office is at Hollyfield House, 22 Hollyfield Road, Surbiton, Surrey, KT5 9AL ("**Your Healthcare**"); and
- [INSERT NAME OF ORGANISATION] whose place of business is at [INSERT ORGANISATION ADDRESS] (the "**Participant**"),

(each a "**party**" and together the "**parties**").

BACKGROUND

- The CHIS Hub Service Providers have been commissioned to provide the London-wide CHIS Hub Service (the "**Service**") by NHS England from the 1st April 2017 for an initial term of 5 years. Patient data will be collected, collated, analysed and reported on and made available to the other organisations involved in the commissioning, service provision and safeguarding of children; they will access data at an appropriate level making use of CarePlus & the London-wide CHIS Hub Platform ("**System C Healthcare Software**").
- The parties have agreed to the supply, hosting, access and sharing of applicable patient data in accordance with the terms and conditions of this Agreement and under the governance of the **Data Sharing Framework**.
- Once this Contract Sheet is in agreed form and has been signed by both London CHIS Hub Service Providers and the Participant, the parties will have a binding contract incorporating the attached terms and conditions. The Participant shall return its executed counterpart to their London CHIS Hub Service Provider at the address specified below, following which a copy of the fully executed and dated Agreement will be sent to the Participant at the address above.

Participant Code:	[INSERT ORGANISATION CODE]
Participant Name:	[INSERT ORGANISATION NAME]
Local Authority Area:	[INSERT LA AREA]
Clients:	NHS England (London)
London CHIS Hub Service Provider Addresses:	• For North West London and South East London: InHealth Intelligence Ltd, Unity House, Road 5, Winsford Industrial Estate, Winsford, Cheshire, CW7 3RB • For North East London: North East London NHS Foundation Trust, operating from CEME Centre, Marsh Way, Rainham, RM13 8EU • For South West London: Your Healthcare CIC, Hollyfield House, 22 Hollyfield Road, Surbiton, Surrey, KT5 9AL

SIGNATURE PAGE		
We confirm that we have read and agree to the terms and conditions attached below including the Schedules and Data Processing Contract.		
London CHIS Hub Service Providers:		
Signed for and on behalf of InHealth Intelligence Ltd provider of the North West London and South East London CHIS Hub services: **Signature** [redacted] **Name & Role:** Phil Kirby, Managing Director and Caldicott Guardian	**Signed for and on behalf of North East London NHS Foundation Trust - for North East London CHIS Hub service:** **ignature:** [redacted] **Name & Role:** Robert Paley, IG and Information Security Manager	**Signed for and on behalf of Your Healthcare CIC – for South West London CHIS Hub service:** **Signature:** [redacted] **Name & Role:** Marjan Daneshpour, Head of Information and Child Health
Participant: [INSERT ORGANISATION NAME]		

Signed for and on behalf of the Participant:

1) Director with responsibility for Maternity Department Provider (or deputy)

Name: _____ Signature: _____ Date: _____

2) Director with responsibility for Newborn Blood Spot Laboratory Service (or deputy)

Name: _____ Signature: _____ Date: _____

3) Director with responsibility for Newborn Hearing Screening Provider (or deputy)

Name: _____ Signature: _____ Date: _____

4) Director with responsibility for Health Visiting Service Provider (or deputy)

Name: _____ Signature: _____ Date: _____

5) Director with responsibility for School Aged Immunisation Provider (or deputy)

Name: _____ Signature: _____ Date: _____

6) Director with responsibility for Borough Councils Education Department (or deputy)

Name: _____ Signature: _____ Date: _____

THE PARTIES AGREE AS FOLLOWS:

1 DEFINITIONS

1.1 In this Agreement, the following expressions shall have the following meanings:

"Agreement"	Means the Contract Sheet and these terms and conditions.
"Audit"	Has the meaning given to it in Clause 5.7.
"Business Functions"	Means the Participant's functions e.g. Provision of General Practice Services or Maternity Services
"CarePlus"	System C's CHIS software application.
"Caldicott Guardian"	Caldicott Guardian is a senior person responsible for protecting the confidentiality of people's health and care information and making sure it is used properly.
"CHIS Hub"	Child Health Information Service system.
"CHIS Hub Platform"	Child Health Information Service Platform provided by System C – hosts all data loaded into CarePlus.
"Client"	NHS England – who has contracted the London CHIS Hub Service Providers to deliver the Service and as detailed on the Contract Sheet.
"Contract Sheet"	Means the completed and executed contract sheet preceding these terms and conditions.
"Contract"	Means the agreement entered into between the Client and each London CHIS Hub Service Provider
"Data Protection Act 2018"	The Data Protection Act 2018 came into force on 25 May 2018. The Act supplements the General Data Protection Regulation (GDPR) and incorporates it into UK law.
"Data Protection Legislation"	Means the Data Protection Act 2018 and the General Data Protection Regulation, and where "**Data Controller**", "**Data Processor**", "**Data Subject**", "**Personal Data**", "**Process**" or "**Processing**" are referred to in this Agreement, they shall have the meaning specified in the Data Protection Legislation.
"Disclosing Party"	The party disclosing the confidential data.
"ePCHR"	Electronic Personal Child Health Record
"eRedbook"	Sitekit's name for their implementation of the electronic Personal Child Health Record (ePCHR)
"Field Sets"	Identify the range of care settings (primary care, outpatient care, inpatient care, welfare) and accompanying data which may be accessed by the Participant to perform its Business Functions appropriately.
"FOIR"	Means a request under the Freedom of Information Act 2000.
"General Data Protection Regulation" or "GDPR"	The Regulation implemented by the UK Government relating to the General Data Protection Regulation (GDPR) enacted on 25th May 2018 and placing additional obligations on data controllers regarding transparency, fair processing and additional rights for the data subject.
"HI"	Means InHealth Intelligence Limited, the organisation contracted to provide the North West London and South East London CHIS Hub services.

"HI Software"	Means HI Hub, made available to General Practice in North West London and South East London and some Practices within North East London in support of vaccination data analysis and reporting.
"London CHIS Hub Service Providers"	InHealth Intelligence Ltd (HI) for the North West London CHIS and South East London CHIS; North East London NHS Foundation Trust (NELFT) for the North East London CHIS; and Your Healthcare CIC (Your Healthcare) for the South West London CHIS.
"NELFT"	Means North East London NHS Foundation Trust, the organisation contracted to provide the North East London CHIS Hub service.
"Patient"	Person, client, pupil, service user or children i.e. data subject
"Patient Data Sets"	Means the Participant's patient data (for current patients registered with the Participant) held on its clinical system, as specified in SCHEDULE 1 (and as may be extended by the agreement of the parties from time to time).
"Receiving Party"	The party receiving the confidential information.
"Record Set Restrictions"	Means the parameters limiting the views that the Participant and/or its authorised users may have based upon Personal Data, e.g. "Current patients", "referred/awaiting review", "and alive", "anonymised trend summary" as specified in SCHEDULE 3.
"Security Manager"	Means the individual within the organisation who takes ownership of information security /information governance matters.
"Data Protection Officer" **or "DPO"**	Means the party appointed as such by the Participant.
"Security Policy"	Means the NHS Digital's Guide to the Notification of Data Security and Protection Incidents and any specific procedures established by the IG Group of the London CHIS Programme Board on behalf of all participants in respect of security, confidentiality and patient consent obligations, as made available to the applicable participants from time to time.
"Service"	Has the meaning given to it in the Contract Sheet.
"System C Healthcare Software"	System C Healthcare Ltd provides a browser-based Child Health Information System (CHIS) known as CarePlus, which will form the main software used by the London CHIS Hub services. One instance for the whole of London has been deployed. It is hosted by System C Healthcare in their secure data centre but will be administered and controlled by the London CHIS Hub Service Providers. The CHIS Hub Service Providers will manage the System C Healthcare contract in line with their obligations as data processors under the direction of the Data Controllers. System C Healthcare Ltd have also been commissioned to provide the London-wide CHIS Hub Platform. Together with CarePlus, the Platform forms the System C Healthcare Software.
"Sitekit"	Provider commissioned to deliver the ePCHR service for London. A sub-Data Processor Agreement has been established between each CHIS Hub Service Providers and Sitekit to cover the associated governance arrangements.
"Your Healthcare"	Your Healthcare CIC, the organisation commissioned by NHS England to deliver the South West London CHIS Hub service.

1.2 In this Agreement, unless the context otherwise requires: (a) words in the singular include the plural and words in the plural include the singular and a reference to one gender shall include a reference to the other genders; (b) Clause, Schedule and paragraph headings shall not affect the interpretation of this Agreement; (c) the Schedules form part of this Agreement and shall have effect as if set out in full in the body of this Agreement and any reference to this Agreement includes the Schedules; (d) references to Clauses and Schedules are to Clauses and Schedules of this Agreement and references to paragraphs are to paragraphs of the relevant Schedule; (e) a **person** includes a natural person, corporate or unincorporated body (whether or not having a separate legal personality); (f) references to any enactment, order, regulation or other similar instrument shall be construed as a reference to the enactment, order, regulation or instrument as amended or re-enacted by any subsequent enactment, order, regulation or instrument; and (g) any words following the terms **including**, **include**, **in particular**, **for example** or any similar expression shall be construed as illustrative and shall not limit the sense of the words, description, definition, phrase or term preceding such terms.

2 SUPPLY OF DATA

2.1 The London CHIS Hub Service Providers shall:

2.1.1 Take receipt and securely process patient data provided by the Participant, making it available via the CHIS Service.

2.1.2 Contract System C Healthcare under a formal contract for the secure hosting of child health records on CarePlus and within the London-wide CHIS Hub Platform.

2.2 The Participant hereby agrees to:

2.2.1 Share Personal Data Sets from the Participant's system(s) using the most appropriate method over the N3/HSCN network in accordance with the provisions of this Agreement and the Security Policy (the data export method is expected to change over time).

2.2.2 Address any queries or data quality issues with the CHIS Hub Service Provider.

2.2.3 Ensure that it complies with the DPA and GDPR regarding fair and lawful processing information, to support the supply, export and hosting of the Patient Data Sets to CHIS Hub Service Providers pursuant to Clause 2.2.1 above

2.3 Any extension to the scope of the Patient Data Sets to be provided to the CHIS Hub Service Providers shall be agreed between the Parties, in the form of an addendum to this Agreement. CHIS Hub Service Providers shall submit an addendum to the Participant for any such extension and no such extension shall be effective or implemented until the CHIS Hub Service Providers has received written/electronic confirmation by an authorised individual of its request from the Participant.

2.4 The Participant warrants that the Personal Data supplied by it to the Service were obtained by the Participant and provided to CHIS Hub Service Providers in compliance with the Data Protection Legislation.

3 DATA SHARING

3.1 Subject to Clause 3.2, CHIS Hub Service Providers shall be entitled to access and use the Patient Data Sets for the purposes of complying with its obligations under this Agreement and in supporting and providing the Service. For the avoidance of doubt, CHIS Hub Service Providers and other agreed sub-data processors shall not be entitled to use the contents of the Patient Data Sets for commercial purposes.

3.2 Subject to Clause 3.3, the Participant hereby agrees to grant access to use the Patient Data Sets to the third parties identified in SCHEDULE 2 for the purposes set out therein. CHIS Hub Service Providers shall comply with the provisions of this Agreement and the Security Policy in respect of any sharing of the patient data pursuant to this Clause 3.1.

3.3 No access shall be granted to the Patient Data Sets pursuant to Clause 3.2 above unless:

3.3.1 An agreement to appropriately control access to the data and restrict user accounts to relevant healthcare and social care professionals has been entered into by CHIS Hub Service Providers with the applicable NHS or Social Care organisation identified in SCHEDULE 2.

3.3.2 The healthcare professional requiring access to the data is an authorised user of the CHIS Hub Service Providers / System C Healthcare Software.

3.3.3 The sharing arrangements detailed in SCHEDULE 2 are supported by a legal basis or the patient in question has provided consent for the purposes of access and use of their personal data by healthcare professionals involved in their care.

3.3.4 Such patient consents are logged within the System C Healthcare Software/ HI Software's applicable consent register.

3.4 Any changes to or extension of the access granted pursuant to Clause 3.2 above shall be agreed between the parties, in the form of an addendum to this Agreement. CHIS Hub Service Providers shall submit an addendum to the Participant for any such extension and no such extension shall be effective or implemented until CHIS Hub Service Providers have received written/electronic confirmation by an authorised individual of its request from the Participant.

4 ACCESS TO THE SOFTWARE

4.1 As a participant of the London-wide CHIS, the Participant shall (and will ensure that any of its employees, officers, contractors, agents and authorised representatives shall) use System C Healthcare Software/HI Software (for NWL, SEL and certain CCG areas in NEL) in accordance with the provisions set out in SCHEDULE 3 and the terms of this Agreement.

4.2 The Participant shall be entitled to access the Patient Data Sets contained within System C Healthcare Software/HI Software (for NWL, SEL and certain CCG areas in NEL) for the purposes of reviewing their registered children's child health record (including any child health records for children who should be associated with their organisation, e.g. as a result of their address). CHIS Hub Service Providers shall facilitate the provision of and reporting on such data to the Participant.

4.3 The Participant agrees that any information obtained from the System C Healthcare Software/HI Software (for NWL, SEL and certain CCG areas in NEL) shall:

4.3.1 Only be disclosed to, and used by, users and employers who plan, govern and/or deliver healthcare or social care services under the directives of the Participant for its patients.

4.3.2 Only be used for the benefit of the applicable patient within the care of the Participant that is the Data Subject of the information in question.

4.3.3 Not be provided to any third parties so as to avoid the requirement of such third party entering into a data sharing agreement with CHIS Hub Service Providers in respect of the Patient Data Sets.

4.4 The Participant hereby agrees to:

4.4.1 If applicable, assign those Business Functions, Field Sets and Record Set Restrictions detailed in SCHEDULE 3 to its employees, contractors, link workers and other users

4.4.2 Use all reasonable endeavours to ensure that the Client (or, if applicable, any of its assignees and/or successors) is not placed in breach of any of its obligations under the Contract by virtue of any act or omission by the Participant and/or any of its employees, officers, contractors, agents and authorised representatives

4.4.3 Report any faults, issues or enhancement requests to the relevant CHIS Hub Service Provider's Support Desk

4.4.4 Abide by the Security Policy and nominate a Data Protection Officer and/or "Caldicott Guardian" to undertake the duties specified in the Security Policy

4.4.5 Record and notify CHIS Hub Service Providers of all incidents capable of placing at risk or affecting the confidentiality, integrity and availability of data delivered to, via, or from the Service immediately upon such incidents occurring and to fully co-operate and liaise with the CHIS Hub Service Providers' Security Manager on all such incidents.

4.5 The parties agree to co-operate and assist each other in complying with any subject access request by a Data Subject. The CHIS Hub Service Providers will provide within its patient facing information (including the CHIS Privacy Notice) details of its Data Protection Officer and the arrangement for patients to obtain access to CHIS hosted data via a subject access request. The Participant, as the data controller, will need to address all other Data Subject Rights requests.

4.6 The Participant acknowledges and agrees that, in the event the Client is required to respond to a Freedom of Information Requests (FOIR) relating to aggregate only data, CHIS Hub Service Providers shall be entitled to support and assist the Client as reasonably necessary in providing a response.

5 DATA PROCESSING

5.1 The Participant and CHIS Hub Service Providers acknowledge and agree that, for the purposes of the Data Protection Legislation, the Participant along with other clinical service providers are Data Controllers and that CHIS Hub Service Providers are Data Processors in respect of any Personal Data.

5.2 The Participant acknowledges and agrees that System C Healthcare will act as a sub-Data Processor for the purposes of this Agreement. In addition, ePCHR providers will be sub-Data Processors for the provision of access by parents/carers to their child health records. CHIS Hub Service Providers will not otherwise engage sub-Data Processors to act on its behalf without prior written agreement of the Participant, such approval not to be unreasonably delayed or withheld.

5.3 CHIS Hub Service Providers will, and will also ensure the same of System C Healthcare, only process the Personal Data in accordance with the Participant's instructions from time to time and shall not process the Personal Data for any purpose other than those expressly authorised by the Participant, which shall include for the purpose of carrying out its obligations under this Agreement and as detailed within its contract with NHS England, unless otherwise required by law, in which case CHIS Hub Service Providers will inform the Participant of those obligations before such Processing takes place, unless CHIS Hub Service Providers is prohibited from so doing by the law on grounds of public interest.

5.4 Appendix A provides a "**Data Processing Contract"**; it confirms the specific obligations of the Participant and the CHIS Provider in relation to their obligations under the Data Protection Legislation and forms part of this Agreement.

5.5 CHIS Hub Service Providers warrants that:

5.5.1 they shall process the Personal Data in compliance with all applicable laws, enactments, regulations, orders, standards and other similar instruments each with the force of law, and in accordance with the common law duty of confidentiality;

5.5.2 having regard to the state of technological development and the cost of implementing any measures it shall, and shall ensure that System C Healthcare, take appropriate technical and organisational measures against the unauthorised or unlawful processing of Personal Data and against the accidental loss or destruction of, or damage to, Personal Data to ensure a level of security appropriate to (i) the harm that might result from such unauthorised or unlawful processing or accidental loss, destruction or damage; and (ii) the nature of the Personal Data to be protected;

5.5.3 they will ensure that its employees and agents, comply with such measures and the Security Policy;

5.5.4 they will ensure that System C Healthcare are subject to the same obligations as set out in this Agreement;

5.5.5 they will, taking into account the nature of processing, assist the Participant in ensuring its compliance with Articles 32 to 36 of the GDPR.

5.6 The Participant acknowledges that their CHIS Hub Service Provider is reliant on the Participant (along with other Data Controllers) for agreeing the extent to which the CHIS Hub Service Provider is entitled to use and Process the Personal Data in support of child health services.

5.7 The relevant CHIS Hub Service Provider agree to indemnify and keep indemnified and

defend at its own expense the Participant against all costs, claims, damages or expenses incurred by the Participant or for which the Participant may become liable due to any failure by CHIS Hub Service Provider or its employees or agents to comply with any of its obligations under this Agreement subject to the limits set forth in clause 10.1 of the Data Processing Contract (Appendix A) and clause 8.4 of this Agreement.

5.8 Subject to providing all reasonable notice to CHIS Hub Service Providers, the Client (and/or its authorised representatives) shall be entitled on behalf of the Participant to oversee an audit by CHIS Hub Service Providers of its compliance with the requirements of this Clause 5 (an "Audit") where required by the Data Protection Legislation. CHIS Hub Service Providers will provide the Client and the Participant with evidence of its compliance. In the event the Client does not exercise its rights of Audit under this Clause 5.7, the Participant shall be entitled to exercise such right, subject to receiving written authorisation to do so from the Client.

5.9 CHIS Hub Service Providers shall notify the Participant promptly if it becomes aware of any unauthorised or unlawful processing, loss of, damage to or destruction of the Personal Data ("promptly" shall be construed by reference to the nature of the unauthorised or unlawful processing loss of, damage to or destruction of the Personal Data, and the time at which CHIS Hub Service Providers became aware of the same).

5.10 CHIS Hub Service Providers will keep a record of any processing of personal data it carries out on behalf of the Participant.

5.11 CHIS Hub Service Providers shall promptly comply with any request from the Participant requiring CHIS Hub Service Providers to amend, transfer, delete or restrict any inaccurate Personal Data.

5.12 If CHIS Hub Service Providers receives any complaint, notice or communication which relates directly or indirectly to the processing of the Personal Data or to either party's compliance with the Data Protection Legislation (as such compliance relates to this Agreement) and the data protection principles set out therein, it shall promptly notify the Participant and it shall provide the Participant with co-operation and assistance in relation to any such complaint, notice or communication.

5.13 At the Participant's request, CHIS Hub Service Providers shall provide to the Participant a copy of all Personal Data held by it in the format and on the media reasonably specified by the Participant.

5.14 CHIS Hub Service Providers shall not transfer the Personal Data outside the United Kingdom without the prior written consent of the Participant.

5.15 Except as specified by the terms of this Agreement, CHIS Hub Service Providers may not authorise any third party or sub-contractor to process the Personal Data.

5.16 CHIS Hub Service Providers shall notify the Participant within 72 hours if it receives a request from a Data Subject for access to that person's Personal Data.

5.17 CHIS Hub Service Providers shall provide the Participant with co-operation and assistance in relation to any request made by a Data Subject to have access to that person's Personal Data.

5.18 CHIS Hub Service Providers shall not disclose the Personal Data to any Data Subject or to a third party other than at the request of the Participant or as provided for in this Agreement.

5.19 On termination or expiry of the Contract, CHIS Hub Service Providers shall, following any necessary migration of data to a third party replacement provider (as may be required by the Client), destroy all Personal Data provided by the Participant pursuant to this Agreement in accordance with the Record Management Code of Practice for Health and Social Care 2016 (unless otherwise restricted by law).

6 CHIS HUB SERVICE PROVIDERS' EMPLOYEES

6.1 The CHIS Hub Service Providers shall take reasonable steps to ensure the reliability of any of CHIS Hub Service Provider's employees who have access to the Personal Data.

6.2 The CHIS Hub Service Providers shall ensure that access to the Personal Data is limited to:

6.2.1 Those employees of CHIS Hub Service Providers and System C Healthcare who need access to the Personal Data to meet their obligations under this Agreement, and

6.1.2 In the case of any access by any employee, such part or parts of the Personal Data as is strictly necessary for performance of that employee's duties.

6.3 The CHIS Hub Service Providers shall ensure that all employees (including those of System C Healthcare):

6.3.1 are informed of the confidential nature of the Personal Data; and

6.3.2 have undertaken training in the laws relating to handling Personal Data; and

6.3.3 are notified of CHIS Hub Service Providers' and their own duties and obligations under this Agreement.

7 TERM

7.1 This Agreement shall commence as specified in the Contract Sheet and shall continue until:

7.1.1 The Contract has been terminated or expires; or

7.1.2 CHIS Hub Service Providers has ceased to have any data of the Participant (including the Patient Data Sets) under its custody or control, whichever is the later.

7.2 Either party shall be entitled to terminate immediately if the other party commits any material breach of this Agreement and fails to remedy that breach within thirty (30) days' written notice of that breach (the thirty (30) day period only applies where a breach is capable of remedy – if it is incapable of remedy, this Agreement may be terminated by written notice immediately).

7.3 Either party shall be entitled to terminate this Agreement, without cause, provided 3 months written notice is provided.

7.4 Termination or expiry of this Agreement shall not affect any accrued rights or obligations of either party arising out of this Agreement.

8 LIMITATION OF LIABILITY

8.1 Neither party shall exclude or limit its liability under this Agreement (including under Clause 8.4) for:

8.1.1 Death or personal injury caused by its negligence

8.1.2 Fraud or fraudulent misrepresentation

8.1.3 Any liability pursuant to an indemnity granted under this Agreement, namely the indemnities set out at Clauses 5.5 and 5.6 of this Agreement.

8.2 CHIS Hub Service Providers shall not be liable for any indirect or consequential losses or any loss of profit arising out of or in connection with this Agreement or any breach or non-performance of it (including without limitation by reason of its negligence).

8.3 The Participant agrees that it will have no remedy in respect of any untrue statement or representation made to it (including those made negligently) upon which it relied in entering into this Agreement and that its only remedy can be for breach of contract (unless the statement was made fraudulently).

8.4 Each party's Contractual Liability to the other shall not exceed the total of the fees paid in the twelve (12) month period in which the relevant services were provided. "Contractual Liability" means the total liability howsoever arising under or in relation to the subject matter of this Agreement that is not (a) unlimited by virtue of Clause 8.1; or (b) excluded pursuant to Clauses 8.2 and 8.3 or (c) limited by Clause 5.7.

8.5 For the avoidance of doubt, the limitation of Contractual Liability set out in Clause 8.4 is expressly subject to Clause 8.1 such that it does not limit any liability incurred in connection with any of the provisions set out in that Clause or any indemnified liability in Clause 5.7 and Clause 10.1 of Appendix A.

9 CONFIDENTIALITY

9.1 Each party that receives ("**Receiving Party**") Confidential Information from the other ("**Disclosing Party**"), whether before or after the date of this Agreement shall: (a) keep the Confidential Information confidential; (b) not disclose the Confidential Information to any other person other than with the prior written consent of the Disclosing Party or in accordance with this Clause 9; and (c) not use the Confidential Information for any purpose other than the performance of its obligations or its enjoyment of rights under this Agreement ("**Permitted Purpose**").

9.2 The Receiving Party may disclose Confidential Information to its own officers, directors, employees, contractors, agents, and advisers who reasonably need to know such Confidential Information for the Permitted Purpose (each a "**Permitted Third Party**"), provided that the Receiving Party shall remain liable to the Disclosing Party for the acts, omissions, and compliance with the terms of this Clause 9 of such Permitted Third Party as if such Permitted Third Party was the Receiving Party (and a party to this Agreement). The Receiving Party shall ensure that each Permitted Third Party is made aware of and complies with all the Receiving Party's obligations of confidentiality under this Clause 9.

9.3 The terms of Clause 9.1 shall not apply to any information which: (i) is or becomes public knowledge other than by breach of this Clause 9; (ii) is independently developed without

access to the Confidential Information; (iii) is in the possession of the Receiving Party prior to receipt from the Disclosing Party, other than by reason of a breach of this Clause 9 or any other obligation of confidence; or (iv) is received from a third party who lawfully acquired it and who is under no obligation restricting its disclosure.

9.4 If required by law, the Receiving Party may disclose Confidential Information to a court of competent jurisdiction or applicable regulatory authority or agency, provided that the Receiving Party shall (if legally permissible) provide reasonable advance notice to the Disclosing Party and co-operate with any attempt by the Disclosing Party to obtain an order providing for the confidentiality of such information to be maintained.

9.5 Neither party shall make any announcement or publicity statement relating to this Agreement or its subject matter without the prior written approval of the other party (except as may be required by law).

10 GENERAL TERMS

10.1 **Assignment:** Except for as provided in this Agreement, neither party shall assign, subcontract or otherwise transfer its rights or obligations under this Agreement in whole or in part without the prior written consent of the other party.

10.2 **No Waiver**: No failure or delay by either party to exercise any right, power or remedy shall operate as a waiver of that right, power or remedy nor shall any partial exercise preclude any further exercise of the same, or of any other right, power or remedy.

10.3 **Entire Agreement**: This Agreement supersedes any prior contracts, arrangements and undertakings between the parties in relation to its subject matter and constitutes the entire contract between the parties relating to the subject matter.

10.4 **Notices**: All notices and other communications under this Agreement shall be delivered by hand, courier, or first class pre-paid mail (either recorded delivery or registered) and will be deemed to have been served (i) if by hand, when delivered, or (ii) if by courier or first class pre-paid mail, forty eight (48) hours after delivery to the courier or posting (as the case may be), provided that the parties may agree in writing to serve notices by email. The addresses for service of notices under this Agreement shall be sent to the address of the recipient set out in the Contract Sheet, or to such other address as the recipient may have notified from time to time.

10.5 **Variation:** No variation of this Agreement shall be effective unless it is agreed by both parties in writing and signed by the parties' (or their authorised representatives).

10.6 **Severability:** Any provision of this Agreement which is held invalid or unenforceable shall be ineffective to the extent of such invalidity or unenforceability without invalidating or rendering unenforceable the remaining terms hereof.

10.7 **Remedies**: No right or remedy conferred by either party is exclusive of any other right or remedy contained in this Agreement or as any law may provide, but each shall be cumulative of every right or remedy given in this Agreement now or hereafter existing and may be enforced concurrently therewith or from time to time.

10.8 **Third Party Rights**: Except as expressly provided in this Agreement, the parties hereby exclude to the fullest extent permitted by law any rights of third parties to enforce or rely

upon any of the provisions of this Agreement, whether pursuant to the Contracts (Rights of Third Parties) Act 1999 or otherwise.

10.9 **Relationship**: Nothing in this Agreement shall constitute or imply, or be deemed to constitute or imply, any partnership, joint venture, agency, fiduciary relationship or other relationship between the parties other than the contractual relationship expressly provided for in this Agreement. Nothing in this Agreement shall be deemed to constitute either party the agent of the other party, and neither party shall have, nor represent that it has, any authority to make any commitments on the other party's behalf.

10.10 **Counterparts:** This Agreement may be executed in any number of counterparts, each of which, when executed and delivered, shall be an original, and all the counterparts together shall constitute one and the same instrument.

10.11 **Jurisdiction:** This Agreement and any non-contractual obligations arising out of or in connection with it will be governed by English law and the parties irrevocably submit to the exclusive jurisdiction of the courts of England for the determination of any dispute arising out of or in connection with this Agreement (including in relation to any non-contractual obligations).

10.12 **Dispute Resolution**: The parties to this agreement will work together to promptly resolve any dispute regarding the terms of this Agreement. NHS England can be requested by either party to assist in the resolution of the dispute in the event that the parties cannot agree otherwise within 21 days.

SCHEDULE 1 - DATA SUPPLY AGREEMENT

PERSONAL DATA SETS TO BE SUPPLIED BY THE PARTICIPANT

Table 1 – Personal Data Set, Content of the Export and Hosting Service

Please select only the relevant Data Exports that will be provided to the CHIS. This will depend on the scope of the child health service(s) that your organisation provides.

Please use the "✓" icon in the final column to indicate the Data Set(s) to be provided.

Personal Data Sets	**Personal Identifiable Data to be Shared and Hosted within the Service**	
Select Data Export	**Recommended Data Sets**	**Participant Confirmed**
1. Maternity Department/Unit Data	Note *1	n/a
2. Newborn Blood Spot Screening Data	Note *2	n/a
3. Newborn Hearing Screening Data	Note *3	n/a
4. Health Visiting Service Data	Note *4	n/a
5. School Aged Immunisation Data	Note *5	n/a
6. Local Authority (School Lists)	Note *6	✓
7. Looked After Children Status Data	**Note *7**	**n/a**
8. National Childhood Measurement Data	**Note *8**	**n/a**

*1 The Maternity Department/Unit Data Flows are established flows of data to the CHIS, they include:

- Antenatal Assessments
- New Birth Notifications
- Newborn & Infant Physical Examination (NIPE) data (Developmental checks)
- Discharge Data including BCG and Neonatal Hepatitis B Immunisations, screening for Hepatitis B positive status.
- Newborn Deceased Notifications and Pregnancy closures
- Looked After Child (LAC) or Safeguarding status information.

*2 The Newborn Blood Spot Screening Data from the Blood Spot Laboratory is an established information flow to the CHIS. Screening Data to be provided to the CHIS is specified in a separate document (available upon request). Its relevance to those providing child health services is significant. Rare but serious health conditions can be identified using this screening programme and early treatment can improve their health and prevent severe disabilities and even death. The London CHIS Hub Service Providers are responsible for sending out Newborn Blood Spot Screening Result Letters to Parents/Guardians.

*3 Newborn Hearing Screening Data is an established information flow to the CHIS. It reports the results of hearing screening tests (typically 1-3 test results for each ear).

*4 Health Visiting Service Data is an established information flow to the CHIS. It provides data from Health Visiting Service providers for those aged 0-19 year old including Patient Registration Details – notifications of patients moving in an out of the Health Visiting Service area.

*5 School Aged Immunisation Data is provided by School Aged Immunisation Providers and is an established information flow to the CHIS. It details Pupil ID, NHS Number (where available), Administrative data and Vaccination status data.

*6 The Local Authority's Education Department shares school enrolment/list data with the CHIS (three times a year or at another agreed frequency). Specifically, the following data items will be provided by the Education Department; Pupil ID, Name, Date of Birth, Gender, Postcode, School Code, School Start Date, and if available Ethnic Group, School Name, Year Group and Census Date. The Local Authority Public Health Department will not provide any data to the CHIS.

Data Item	**Mandatory /Optional**
Pupil ID	Mandatory
Surname	Mandatory
Forename	Mandatory
Date of Birth	Mandatory
Gender	Mandatory
Postcode	Mandatory
School Code e.g. URN	Mandatory
School Name	Mandatory
School Start Date	Mandatory
Year Group	Optional
Census Date	Optional
Ethnic Group	Optional
NHS Number	Optional

*7 The CHIS monitors the delivery of the Healthy Child Programme with a special emphasis on Looked After Children. The Local Authority shares details of this status with the CHIS.

*8 The Local Authority is obliged to report to NHS Digital on the outcomes of the National Childhood Measurement Programme. NHS England have mandated that the CHIS records these measurements within the child records in the CHIS IT System.

SCHEDULE 2 - DATA SHARING AGREEMENT

Table 1 – Data Sharing Key:

PID – Patient Identifiable Data; **APD** – Anonymised Patient Data (All identifiers removed) **AO** – Aggregate Only Reports may be accessed (numbers and percentages only).

For APD – the NHS number, all other identifiers, Name, Address, Contact Details, Date of Birth and all comments (as these may contain references to individuals) will be removed to ensure the data is truly anonymised.

Entries highlighted with **Bold** text form the current Data Sharing arrangements that will be established and maintained by the Service. The access specified is to the relevant child health records hosted within the CHIS Hub systems and within the London-wide CHIS Platform.

Access Matrix	**General Practice**			**NHS England (London)*[1] (Client)**			**Public Health (Borough Councils)*[5]**			**Public Health England*[1&6]**			**NHS & Care Providers delivering Child Health Services*[2]**			**Local Authority Education Departments and School Health Providers*[3]**			**Safeguarding Teams*[4]**		
	PID	**APD**	**AO**	**PID**	**APD**	**AO**	**PID**	**APD**	**AO**	**PID**	**APD**	**AO**	**PID**	**APD**	**AO**	**PID**	**APD**	**AO**	**PID**	**APD**	**AO**
1. Administration Data for all Children aged 0 -19 years old	**Yes**	n/a	**Yes**	**Yes**	No	**Yes**	No	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	No	**Yes**	**Yes**	No	**Yes**	**Yes**	No	**Yes**
2. Newborn & Infant Physical Examinations data (Developmental checks)	**Yes**	n/a	**Yes**	No	No	**Yes**	No	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	No	**Yes**	No	No	No	**Yes**	No	**Yes**
3. Developmental data for all Children aged 0 -19 years old inclusive	**Yes**	n/a	**Yes**	No	No	**Yes**	No	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	No	**Yes**	No	No	No	**Yes**	No	**Yes**
4. Newborn Hearing Screening data	**Yes**	n/a	**Yes**	No	No	**Yes**	No	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	No	**Yes**	No	No	No	**Yes**	No	**Yes**
5. Newborn Bloodspot Screening Results	**Yes**	n/a	**Yes**	No	No	**Yes**	No	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	No	**Yes**	No	No	No	**Yes**	No	**Yes**
6. Childhood Immunisation data (universal & targeted)	**Yes**	n/a	**Yes**	**Yes**	No	**Yes**	No	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	No	**Yes**	**Yes**	No	**Yes**	**Yes**	No	**Yes**
7. HepB status for people who are pregnant or recently given birth	**Yes**	n/a	**Yes**	No	No	**Yes**	No	No	**Yes**	**Yes**	No	**Yes**	**Yes**	No	**Yes**	No	No	No	**Yes**	No	**Yes**

Notes:

1. NHS England and Public Health England may access PID where there is a serious incident requiring investigation or as part of an audit request. Access will be restricted to relevant records only. For NHS England & Improvement access to administrative data on HepB at risk babies is provided to ensure safeguarding of this high risk cohort. Please also reference note 6. Which details access to anonymised patient level data outside of the remit of serious incident investigation or for HepB Failsafe.

2. NHS Providers delivering Child Health Services include 0-19 Service Providers, Health Visitor teams, School Nurse Teams, Acute (including Maternity Departments), Mental Health and Community Health service providers, who are engaged in delivering services to children or their pregnant and / or birth parent. Each organisation will be required to sign both an overarching Data Sharing Framework and a specific Data Sharing Agreement (similar to this agreement) to control their access to the patient data as reflected in this agreement. Looked After Children (LAC) co-ordinators will also be able to access relevant patient data.

3. School Health Providers including School Aged Immunisation Teams focus on the provision of school aged vaccinations and the Service will facilitate the sharing of administrative data to ensure all children are identified and their vaccination status is available in support of school health services. Borough Council Education Departments may also require access to the Administrative Data to verify School Enrolments. Again, School Health Provider Organisations and Borough Council Education Departments will be required to sign both the overarching Data Sharing Framework and a specific Data Sharing Agreement (similar to this agreement).

4. Access to patient data will be restricted to authorised individuals of the Safeguarding Teams. Access to patient identifiable data will be restricted to data relating to the individual patient identified in the request being made. The Safeguarding Team's Organisation will be required to sign both the overarching Data Sharing Framework and a specific Data Sharing Agreement (similar to this agreement).

5. Public Health Specialists within Local Authorities/Borough Councils have requested access to APD (data which is patient level, but with all identifiers removed including NHS No., Name, Address, Date of Birth (replaced with Month & Year) and contact details. The data set will support their analysis and formulation of interventions and their evaluation to improve health outcomes for children.

6. Public Health Specialist from NHS England, Borough Council Public Health Specialists and other research bodies interested in research studies associated with child health (in particular elements of the healthy child programme including vaccinations) request anonymised patient data. APD will be provided from the London-wide CHIS in support of this research, such as the safety and efficacy of vaccinations and follow a Data Protection Impact Assessment (DPIA) to assess and mitigate risk of being able to identify an individual from the anonymised data.

7. Child Health Information Services operate across England and when a child has changed (their address, GP Practice or school), the new CHIS will request a copy of the child health record. Accordingly, child health data is provided to the child's new CHIS in alignment with national arrangements.

8. **Electronic Personal Child Health Record (ePCHR)**: In addition to the health and social care information sharing arrangements detailed about, the ePCHR initiative is underway. This Data Sharing Agreement confirms that child health data may be provided to a NHS England commissioned ePCHR service provider. In particular Sitekit for the provision of its e-RedBook service. Sitekit Applications Ltd have signed a sub-Data Processor Agreement and will support consenting parents/carers to access their child health data.

ePCHR providers will not be data controllers of the data provided to them, hence they are not profiled in the above table, rather they will be data processors and only process data as directed. In this case for the purpose of providing access to parents/carers to their child health data. The governance arrangements and consents to support this access will be obtained directly from the Parents/Carers following authentication. Provided robust authentication is in place, patients are entitled to access their health record data.

Data Processors: CHIS Hub Service Providers are the data processors under this Agreement (System C Healthcare Ltd is a sub-data processor). Both acknowledge that patient data is only being transferred to them to process in accordance with the Participant's instructions. Their hosting and processing of patient data is controlled by this Agreement and CHIS Hub Service Provider's contracts with System C Healthcare (who are a sub-data processor) and they have no rights to process the data they host for any other purpose. This arrangement similarly applies to the ePCHR service provider.

SCHEDULE 3 - DATA ACCESS AGREEMENT

Limitations on Use

Table 1: Business Purposes for Participants who providing Child Health Services

The System C Healthcare Software/HI Software (for NWL & SEL and some Practices in NEL) may be used by the Participant to support the business purposes detailed in the table below.

Please use the "✓" icon to select the business purpose(s) for the Participant.

Business Purposes	**Select by ticking the items**
1. Provision of Health Visiting Service in line with the Health Child Programme	**n/a**
2. Commissioning of the School Aged Immunisation Programme	✓
3. Commissioning of the School Nursing Service	✓
4. Reduce Health Inequalities	✓
5. Provision of Maternity Services	**n/a**
6. Provision of Newborn Hearing Screening Services	**n/a**

Table 2: Business Functions for the Participants

Please use the "✓" icon to select the business function(s) for the Participant.

Business Functions	**Select by ticking the items**
1. Provision of the Health Visiting Service for pregnant people and Newborn children	**n/a**
2. Provision of Health Visiting Services for children	**n/a**
3. Hepatitis B Failsafe and Immunisation of children at risk (Hepatitis B positive pregnant person)	**n/a**
4. Provision of the Bloodspots notification service and associated support for those at risk	**n/a**
5. Failsafe and Provision of Childhood Primary Immunisations	**n/a**
6. Safeguarding of children	**n/a**
7. Commissioning of the School Aged Immunisation Programme	✓
8. Commissioning of the School Nursing Service	✓
9. Provision of the Bloodspot notification service, receipt of queries and response to queries	**n/a**
10. Provision of Maternity Services for expectant pregnant people, birth parent and babies	**n/a**
11. Provision of Newborn Hearing Screening	**n/a**

The Field Sets identify the range of care settings (primary care, outpatient care, inpatient care, and welfare) and accompanying data that may be accessed to execute a Business Function appropriately.

Taken together with the Business Functions selected in Table 2 above, the Field Sets support the selection of data to be made available to different Participants. Individual users will be restricted within the specified range according to their function and role within the healthcare and social care provider community.

Table 3: Field Sets for the Participant

Please use the "✓" icon to select the field set(s) for the Participant.

Field Sets	Select by ticking the items
1. General Practice Sourced Data (including child health data on patients 0-19 years old)	✓
2. Bloodspot Data	**n/a**
3. Healthcare Provider Data – Maternity, Newborn and Physical Examination Data, Hearing Screening Data, Vaccination data, etc	**n/a**
4. Birth Administrative Data	**n/a**

Table 4: Record Set Restrictions

In respect of Table 4 below, Part A identifies the types of individuals (patients/clients) whose records the Participant would need to review. Part B identifies the level of detail that the Participant is empowered to view in accordance with the Data Protection Legislation and Health and Social Care Act (2012).

Part A: Sets of patients for Participants who are General Practice Organisation

Please use the "✓" icon to select the set of Patients for the Participant.

Set of Patients	Select by ticking the items
1. Children associated with the services commissioned by the Participant	✓

Part B: Level of Access to Data

Please use the "✓" icon to select the set of Patients for the Participant.

Set of Patients	Select by ticking the items
1. Patient Identifiable Data (administrative)	✓

DOCUMENT CONTROL

This page is provided to support version control and will detail all changes since this original version.

Version	Date	Changes made:
V10.1	16th February 2023	Update to cover page to include the data controllers as per Schedule 3
V10.0	9th September 2022	Final revisions applied following Borough Councils detailed review.
V9.0	21st May 2021	Revisions throughout to reflect the requirements from London Local Authorities (Borough Councils)
V8.0	17th March 2020	Major revisions throughout to reflect new data protection legislation and align with the amended GP Practice Data Sharing Agreement.
V7.0	25th June 2018	Original Version

APPENDIX A - Data Processing Contract

Issued under Article 28(3) of the General Data Protection Regulation

The Participant (hereinafter known as the Data Controller) and the CHIS Hub Service Provider (hereinafter known as the Data Processor) are detailed on the Contract Sheet.

Signature to the Contract Sheet confirms agreement to this Data Processing Contract.

BACKGROUND INFORMATION

1.1 The Data Processor is the CHIS Hub Service Provider. The Data Processor has entered into a contract with NHS England (London) for the provision of the London CHIS Hub and is required to work with Data Controllers who deliver clinical services to children across the Capital. The Participant to this Contract is a Data Controller.

1.2 The obligations within this Contract apply to both the Participant (as Data Controller) and the CHIS Hub Provider (Data Processor).

1.3 Certain words and expressions used in and are applicable to this Contract are defined in the Definitions section (back page).

DATA CONTROLLER RESPONSIBILITIES

2.1 The Data Controller is the data controller of the data insofar as it is Personal Data and, shall at all times, only Process Personal Data lawfully and in accordance with the General Data Protection Regulation ("GDPR") principles, as set out in Article 5.

2.2 It is the legal duty of the Data Controller to comply with, and be able to demonstrate compliance with, the data protection principles in relation to all Personal Data with respect to which he is a Data Controller (unless an exemption applies).

2.3 The Data Controller shall not instruct the Data Processor to Process Personal Data on his behalf under this Contract where the Data Controller does not have a lawful basis to Process that data.

2.4 The Data Processor is responsible for complying with this Contract and the GDPR in respect of the data processing it undertakes.

2.5 The data protection principles are set out in Article 5 of the GDPR. Article 28(3) requires that a number of specific legal stipulations are imposed on a Data Processor (and as set out below).

DATA PROCESSOR RESPONSIBILITIES

3.1 The Data Processor shall Process Personal Data subject to the conditions set out in this Contract, and the further details of Processing in Schedule 1 of Appendix A.

3.2 The Data Processor shall:

3.2.1 Process the Personal Data only in accordance with written instructions from the Data Controller to perform its obligations under this Contract;

3.2.2 Ensure that at all times it has in place appropriate technical and organisational measures to guard against unauthorised or unlawful processing of the Personal Data and/or accidental loss, destruction or damage to the Personal Data, including the measures as are set out in Clause 4 below.

3.2.3 At all times Process the Personal Data in accordance with the Data Protection Legislation

and the common law duty of confidence

3.2.4 Not disclose or transfer the Personal Data to any third party or Data Processor personnel unless necessary and, for any disclosure or transfer of Personal Data to any third party, obtain the prior written consent of the Data Controller save where such disclosure or transfer is specifically authorised under this Contract or otherwise required by law. The Data Processor shall inform the Data Controller of any such transfers as soon as reasonably practicable, and not later than 3 Business Days after taking place;

3.2.5 Take all reasonable steps to ensure the reliability and integrity of any Data Processor personnel who have access to the Personal Data and ensure that the Data Processor personnel:

3.2.5.1 Are aware of and comply with the Data Processor's duties under this Clause, as well as its duties and obligations to ensure that the Personal Data is held securely and subject to a duty of confidence;

3.2.5.2 Are informed of the confidential nature of the Personal Data, the duty of confidence which they owe to that Personal Data and do not publish, disclose or divulge any of the Personal Data to any third party unless directed in writing to do so by the Data Controller or as otherwise permitted by this Contract; and

3.2.5.3 Have undergone adequate training in the use, care, protection and handling of Personal Data;

3.2.6 Notify the Data Controller within 72 hours if it receives from a Data Subject (or third party on their behalf):

3.2.6.1 A Data Subject Access Request (or purported Data Subject Access Request);

3.2.6.2 A request to rectify, block or erase any Personal Data;

3.2.6.3 Any other request, complaint or communication relating to the Data Controller's obligations under the Data Protection Legislation;

3.2.6.4 Any communication from the Information Commissioner or any other regulatory Data Controller in connection with Personal Data; or

3.2.6.5 A request from any third party for disclosure of Personal Data where compliance with such request is required or purported to be required by Law;

3.2.7 Only engage sub-processors to process Personal Data on its behalf with the express prior written consent of the Data Controller, and upon the same written contractual terms as set out in this Clause. The Data Processor will remain liable to the Data Controller for any breaches of the Data Protection Legislation committed by its sub-processors;

3.2.8 Provide the Data Controller with full cooperation and assistance (within the timescales reasonably required by the Data Controller) in relation to any complaint, communication or request including by promptly providing:

3.2.8.1 The Data Controller with full details and copies of the complaint, communication or request;

3.2.8.2 Where applicable, such assistance as is reasonably requested by the Data Controller to enable the Data Controller to comply with a Data Subject's Rights within the relevant timescales set out in the Data Protection Legislation; and

3.2.8.3 On request by the Data Controller, any Personal Data it holds in relation to a Data Subject;

3.2.9 Provide the Data Controller with full cooperation and assistance (within the timescales reasonably required by the Data Controller) in relation to any Data Protection Impact

Assessment which the Data Controller is required to conduct in accordance with the Data Protection Legislation;

3.2.10 Provide the Data Controller with full cooperation and assistance (within the timescales reasonably required by the Data Controller and taking into account the nature of the processing) to enable the Data Controller to comply with its obligations under the Data Protection Legislation;

3.2.11 Inform the Data Controller immediately if asked to do something in respect of Personal Data which would constitute an infringement of the Data Protection Legislation;

3.2.12 Delete all Personal Data at the cessation of this Contract or, if so instructed by the Data Controller, otherwise return all Personal Data to the Data Controller;

3.2.13 Maintain an inventory detailing the Personal Data processed under this Contract, and the manner of this processing; and

3.2.14 If requested by the Data Controller, provide a written description of the measures that it has taken and technical and organisational security measures in place, for the purpose of compliance with its obligations pursuant to this Contract.

Audit

3.2.15 The Data Controller, and/or their appointed representatives (Auditors) shall be entitled to enter the Data Processor's and/or its sub-Data Processors' premises to inspect and audit the Data Processor's Processing of any Personal Data and take copies of relevant documentation (Data Protection Audit).

3.2.16 The Data Protection Audit shall only take place:

3.2.16.1 During the duration of the Contract;

3.2.16.2 Not more than once in any calendar year;

3.2.16.3 On not less than 5 business days' prior written notice from, unless such Data Protection Audit is urgent, in which case on not less than 3 business days' prior written notice from the Data Controller; and

3.2.16.4 During ordinary business hours.

3.2.16.5 The Data Processor shall provide its full co-operation including, but not limited to, providing access to any of the Data Processor's premises and making appropriate personnel and facilities available to the Auditors and shall provide the Auditors with all reasonable assistance to enable such inspection, auditing and copying to take place.

3.2.16.6 Each party shall bear its own costs of the Data Protection Audit.

3.2.16.7 The Data Processor shall not Process or otherwise transfer any Personal Data in or to any country outside the European Economic Area or any country not deemed adequate by the European Commission pursuant to Article 25(6) of Directive 95/46/EC (together "Restricted Countries").

3.2.16.8 The Data Processor shall use its reasonable endeavours to assist the Data Controller to comply with any obligations under the Data Protection Legislation and shall not perform its obligations under this Contract in such a way as to cause the Data Controller to breach any of the Data Controller's obligations under the Data Protection Legislation to the extent the Data Processor is aware, or ought reasonably to have been aware, that the same would be a breach of such obligations.

DATA SECURITY REQUIREMENTS

The Data Processor shall:

4.1 Have regard to the state of technological development and to the cost of implementing any measures, provide a level of security (including appropriate technical and organisational measures) appropriate to the harm that might result from unauthorised or unlawful processing of personal data or the accidental loss, damage or destruction of personal data and the nature of that personal data.

4.2 Ensure that access to personal data is limited to those employees of the CHIS Hub Service Provider and System C Healthcare who need access to meet the Data Processor's obligations under this Contract.

4.3 Take reasonable steps to ensure the reliability of the Data Processor's personnel who have access to the personal data, which shall include ensuring that all staff and those of System C Healthcare engaged by the Data Processor understand the confidential nature of the personal data, and have received appropriate training in data protection prior to their use of the data, and have signed a written undertaking that they understand and will act in accordance with their Organisations and their responsibilities for confidentiality under the Contract.

The Data Processor shall ensure that:

4.5 It has properly configured access rights for its staff, including a well-defined starters and leavers process to ensure appropriate access control.

4.6 Suitable and effective authentication processes are established and used to protect personal data.

4.7 Personal data is backed up on a regular basis and that any back up data is subject to vigorous security measures as necessary to protect the availability, integrity and confidentiality of the data.

4.8 Robust and tested business continuity measures are in place to protect the confidentiality, integrity and availability of the Data Controller's personal data.

4.9 Data is transferred securely where it is essential to do so in relation to this Contract and, ensure data transferred electronically is encrypted to the higher of the international data encryption standards for healthcare and National Standards (this includes data transferred over wireless or wired networks, held on laptops, CDs, memory sticks and tapes).

4.10 Shall take reasonable steps to ensure the reliability of any employees who have access to the Personal Data.

4.11 Employees are not able to access the data remotely e.g. from home or via their own electronic device or internet portal other than through a secure electronic network and in accordance with organisational remote working policy. No data shall be stored in such devices.

4.12 Where instructed by the Data Controller to dispose of data it is disposed of securely and confidentially in accordance with the secure destruction requirements specified in section 8.

SERIOUS INFORMATION BREACH INCIDENT, INCIDENT REPORTING AND DUTY OF CANDOUR

5.1 The Data Processor shall have procedures in place to monitor access and to identify unauthorised and unlawful access and use of personal data.

5.2 The Data Processor shall immediately report any information security incident related to the personal data subject to this Contract to the Data Controller and undertakes to also fully cooperate with the Data Controller's incident investigation requirements.

5.3 In so far as the Data Controller is responsible for the personal data, it is the Data Controller's

responsibility to ensure that the incident is reported to the Information Commissioner and Data Subjects as required.

5.4 The Data Processor shall notify the Data Controller promptly (and in any event no later than 24 hours after discovery) if it becomes aware of any actual, suspected or threatened unauthorised exposure, access, disclosure, Processing, use, communication, deletion, revision, encryption, reproduction or transmission of any component of the Personal Data, unauthorised access or attempted access or apparent attempted access (physical or otherwise) to Personal Data or any loss of, damage to, corruption of or destruction of Personal Data (**Notifiable Data Protection Incident**).

5.5 Any such notification shall, as a minimum, include the following information:

5.5.1 The nature of the breach, including the categories and approximate number of Data Subjects and records concerned;

5.5.2 The contact at the Data Processor who will liaise with the Data Controller concerning the breach; and

5.5.3 The remediation measures being taken to mitigate and contain the breach.

5.6 In the event that any of the information specified within clause 5.5 is unavailable at the time of initial notification then it shall be provided as soon as reasonable available and without undue delay.

PROCESS FOR AGREEING VARIATIONS

6.1 Any variation to the terms of this Contract shall be agreed in writing by the parties.

DISPUTE RESOLUTION PROCESS

7.1 Both parties shall aim to resolve all disputes, differences and questions by means of co-operation and consultation. Should this fail, then the dispute resolutions process in the standard NHS Commissioning contract will be engaged – the conditions contained in GC8. Other terms of that contract will not be applicable in any way to this contract

SECURE DESTRUCTION

8.1 NHS data is subject to legal retention periods and should not be destroyed unless the Data Processor has received specific instruction to do so from the Data Controller. Where data has been identified for disposal:

8.1.1 The Data Processor shall ensure that NHS information held in paper form (regardless of whether originally provided by the Data Controller or printed from the Data Processor's IT systems) is destroyed using a cross cut shredder or subcontracted to a confidential waste company that complies with European Standard EN15713.

8.1.2 The Data Processor shall ensure that electronic storage media used to hold or process NHS Information is destroyed or overwritten to current National Cyber Security Centre (NCSC) standards as defined at https://www.ncsc.gov.uk/topics/cyber-strategy

8.1.3 In the event of any bad or unusable sectors that cannot be overwritten, the Data Processor shall ensure complete and irretrievable destruction of the media itself.

8.1.4 The Data Processor shall provide the Data Controller with copies of all relevant overwriting verification reports and/or certificates of secure destruction of NHS information at the conclusion of the Contract.

EXIT FROM CONTRACT

9.1 The Data Controller may terminate this Contract with immediate effect by written notice to the Data Processor on or at any time after the occurrence of an event that gives rise to an information security incident or otherwise poses a risk of non-compliance with the data protection principles.

9.2 In order to protect personal data, the Data Processor agrees:

9.2.1 To store and process personal data securely and destroy it confidentially when it is no longer necessary and instructed by the Data Controller.

9.2.2 To return to the Data Controller any personal data held at the end of the Contract, ensuring secure transfer, or to makes arrangements for its secure disposal upon the instruction of the Data Controller.

LIABILITY AND INDEMNITY

10.1 Without affecting its liability for breach of any of its obligations under the Contract, the Data Processor shall indemnify the Data Controller in full for costs, losses, charges, expenses it suffers arising out of the Data Processor's loss of NHS information or unauthorised or unlawful use of it whether arising in negligence or is otherwise a breach of this Data Processing Contract and including any fine imposed on the Data Controller by the Information Commissioner by way of civil monetary penalty under s55 of the Data Protection Act up to a maximum of £500,000 in any one claim or prosecution and in the aggregate in any one annual period from 31 July to 30 July.

FREEDOM OF INFORMATION

11.1 The Data Processor acknowledges that the Data Controller is subject to the Freedom of Information Act 2000 (FOIA) and the Environmental Information Regulations 2004 (EIR).

11.2 The Data Controller may be statutorily required to disclose further information about the contracted service or the Contract itself in response to a specific request under FOIA or EIR, in which case:

11.3 The Data Processor shall provide the Data Controller with all reasonable assistance and co-operation to enable the Data Controller to comply with its obligations under FOIA or EIR.

11.4 The Data Controller shall consult the Data Processor regarding commercial or other confidentiality issues in relation to the Contract. However, the final decision about disclosure of information or application of exemptions shall rest solely with the Data Controller.

SCHEDULE 1 OF APPENDIX A

The Data Controller wishes to engage the services of the Data Processor to process personal data on his behalf under the terms and conditions of this Contract for the purposes of:

General description of purpose of use of the data Provision of the London-wide CHIS Hub Service to enable the appropriate sharing of personal data in support of direct patient care for children across the Capital. The CHIS Hub Providers will maintain the child health record with data feeds from General Practice, child health service providers and will facilitate the sharing of this data with organisations and healthcare professionals directly involved in the care of the child. Aggregate and Anonymised Personal Data will also be shared in support of commissioning and service planning.
Data Subjects Children aged 0-19 years old and older where they are known to have a special educational need (up to the age of 26) and their pregnant and / or birth parent/related parties.
Data Classes 1. Administration Data for all Children, schooled or home schooled
Key service elements CHIS Software (CarePlus)
Special provisions (if any) n/a

DEFINITIONS

"Data Controller"	has the meaning given in the Data Protection Legislation;
"Data Processor"	has the meaning given in the Data Protection Legislation;
"Data Subject"	has the meaning given in the Data Protection Legislation;
"Data Subject's Rights"	A request by a Data Subject in accordance with rights granted pursuant to the Data Protection Legislation in relation to his or her Personal Data;
"Data Protection Legislation"	(as applicable): (i) the Data Protection Act 1998 (ii) the Data Protection Act 2018 (once implemented); and (iii) from 25 May 2018 onwards, Regulation (EU) 2016/679, as well as, the Privacy and Electronic Communications (EC Directive) Regulations 2003 and all other applicable law in respect of data protection and data privacy including any applicable guidance or codes of practice that are issued by the Information Commissioner, Working Party 29 and/or the European Data Protection Board (and each of their successors);
"Personal Data"	personal data (as defined in the Data Protection Legislation) which is Processed by the Supplier or any Sub contractor on behalf of the Authority or a Central Government Body pursuant to or in connection with this Contract;
"Process"	has the meaning given in the Data Protection Legislation. 'Processed' and 'Processing' shall be construed in the same manner.
"Sub-contractor"	any third party with whom: (a) the Supplier enters into a Sub-contract; or (b) a third party under (a) above enters into a Sub-contract; or the servants or agents of that third party;
"Working Day"	any day other than a Saturday, Sunday or public holiday in England and Wales.